

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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DELFINA GARCIA-SAMANO, as Mother and Natural
Guardian of minor, A.M.G.,

Plaintiffs,

-against-

THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037,
NYPD POLICE OFFICER EDWARD DELRIO Shield
No. 22519, NYPD POLICE OFFICERS "JOHN"
AND/OR "JANE" "DOES", NEW YORK CITY
DEPARTMENT OF EDUCATION, NEW YORK CITY
BOARD OF EDUCATION, SOUTH RICHMOND HIGH
SCHOOL – IS/PS 25, and PIONEER
TRANSPORTATION CORP.,Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Richmond
County as the place of trial.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 29, 2024

Yours, etc.

Caitlin Robin, Esq.
CAITLIN ROBIN & ASSOCIATES, PLLC.
Attorneys for Plaintiff
30 Broad Street Suite 702

New York, New York 10004
(646)-524-6026
caitlin@robinandassociates.com

TO: THE CITY OF NEW YORK; Corporation Counsel, 100 Church Street, NY, NY 10007

SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, 123rd Precinct,
116 Main St, Staten Island, NY 10307

NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, 123rd Precinct, 116
Main St, Staten Island, NY 10307

NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", 123rd Precinct, 116
Main St, Staten Island, NY 10307

NEW YORK CITY DEPARTMENT OF EDUCATION, 52 Chambers Street, Room 330,
B4, New York, NY 10007

NEW YORK CITY BOARD OF EDUCATION, 100 Church Street, NY, NY 10007

SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, 6581 Hylan Blvd., Staten Island, NY
10309

PIONEER TRANSPORTATION CORP., 2890 Arthur Kill Road, Staten Island, NY 10309

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
DELFINA GARCIA-SAMANO, as Mother and Natural
Guardian of minor, A.M.G.,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037,
NYPD POLICE OFFICER EDWARD DELRIO Shield
No. 22519, NYPD POLICE OFFICERS "JOHN"
AND/OR "JANE" "DOES", NEW YORK CITY
DEPARTMENT OF EDUCATION, NEW YORK CITY
BOARD OF EDUCATION, SOUTH RICHMOND HIGH
SCHOOL – IS/PS 25, and PIONEER
TRANSPORTATION CORP.,

Defendants.

----- X
Plaintiffs DELFINA GARCIA-SAMANO, as Mother and Natural Guardian of minor,
A.M.G., by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified
Complaint herein, alleges upon information and belief as follows:

PARTIES

1. That at all times herein mentioned, the Plaintiffs were and are residents of the City
and State of New York, County of Richmond.

2. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK,
was and still is a municipal entity, duly organized and existing under and by virtue of the laws of
the State of New York. It is authorized by law to maintain a police department, which acts as its
agent in the area of law enforcement and for which it is ultimately responsible. The Defendant

THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

3. At all times hereinafter mentioned, upon information and belief, Defendants SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES" were acting within the course and scope of their employment under Defendant THE CITY OF NEW YORK.

4. At all times hereinafter mentioned, upon information and belief, the Defendant, NEW YORK CITY DEPARTMENT OF EDUCATION, was and still is a municipal agency owned, operated, and controlled by THE CITY OF NEW YORK, and is duly organized and existing under and by virtue of the laws of the State of New York.

5. At all times hereinafter mentioned, upon information and belief, the Defendant, NEW YORK CITY BOARD OF EDUCATION, was and still is a municipal agency owned, operated, and controlled by THE CITY OF NEW YORK, and is duly organized and existing under and by virtue of the laws of the State of New York.

6. At all the times hereinafter mentioned, upon information and belief, the Defendant, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, was and still is a public high school located at 6581 Hylan Blvd., Staten Island, NY 10309, and is owned, operated, and controlled by THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION.

7. The Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION, their

agents, servants and/or employees are the governing bodies, duly organized and existing under the Education Law of the State of New York, vested with the ownership, care, custody and maintenance of all public schools and public-school property, within the City and State of New York, including the Defendant school, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, located at 6581 Hylan Blvd., Staten Island, NY 10309.

8. Upon information and belief, at all the times herein, the Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION, owned and/or leased the premises known as SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, located at 6581 Hylan Blvd., Staten Island, NY 10309.

9. At all times hereinafter mentioned, Defendant PIONEER TRANSPORTATION CORP. was and still is a domestic corporation organized and existing under and by virtue of the laws of the State of New York.

10. At all the times hereinafter mentioned, upon information and belief, the Defendant, PIONEER TRANSPORTATION CORP., was and still is a bus company hired by Defendants THE CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF EDUCATION.

11. At all the times hereinafter mentioned, upon information and belief, the Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and PIONEER TRANSPORTATION CORP., own, operate, and maintain the school busses that transport students to and from the Defendant school, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, more specifically bus #1147.

12. At all the times hereinafter mentioned, upon information and belief, the Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION, and PIONEER TRANSPORTATION CORP., employ

the bus operators of the school busses that transport students to and from the Defendant school, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, more specifically the operator of bus #1147.

13. Upon information and belief, at all the times herein, Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP., their agents, servants, and/or their employees, were charged with the care, custody, control, and safekeeping of the students attending the aforesaid premises known as 6581 Hylan Blvd., Staten Island, NY 10309, including any students on the busses that transport students to and from the aforesaid premises.

14. Plaintiff DELFINA GARCIA-SAMANO, as Mother and Natural Guardian of minor, A.M.G., in furtherance of her causes of action, filed a timely Notice of Claim against Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. Prior to the commencement of this action, on the 26th day of October, 2023, a Notice of Claim was duly served herein on Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, and NEW YORK CITY BOARD OF EDUCATION.

16. This action has been commenced within one year and ninety days from the accrual of this cause of action.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the Defendants have failed to pay or adjust the claims.

18. That the cause of action alleged herein arose in the City and State of New York, County of Bronx.

19. That this action falls within one or more of the exemptions set forth in CPLR §1602.

STATEMENT OF FACTS

20. Upon information and belief, at all times herein mentioned, it was the duty and responsibility of the Defendants, their agents, servants, and/or employees to maintain a safe environment to the students in their care at all times throughout the day, including any students on the busses that transport students to and from the aforesaid premises, more specifically bus #1147.

21. Upon information and belief, on or about October 12, 2023, at approximately 2:45 p.m., during the bus route of bus #1147, within the vicinity of 6581 Hylan Blvd., County of Richmond, State of New York, due to the lack of training, supervision, management, and assistance from the Defendants' employees, Plaintiff A.M.G., a minor with autism, was subjected to assault and battery by a classmate and suffered severe personal injuries. The school bus driver failed to intervene or attempt to stop the altercation and instead drove the bus back to the school.

22. Upon arrival at the school, Defendant police officers were waiting and, without probable cause, subjected Plaintiff A.M.G. to an unlawful stop, question, frisk, search and seizure.

23. Plaintiff A.M.G. was then restrained with metal handcuffs, unlawfully arrested, and held in against his will in unlawful police custody. He was then taken via ambulance to Staten Island University Hospital to be treated for his various injuries, including a fractured nose, facial swelling, and multiple contusions.

24. While being treated for his physical injuries, Defendant officers restrained Plaintiff A.M.G. to his hospital bed with metal handcuffs, causing further emotional distress and trauma.

25. At no time relevant herein did Plaintiff A.M.G. commit a crime or violate the law in any way, nor did the Defendant police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

26. Some of the Defendant officers observed the violation of Plaintiff A.M.G.'s rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting, maliciously prosecuting, using excessive force, and denying Plaintiff the right to due process and a fair trial.

27. As a result of Defendants' negligence, unlawful search, seizure, false arrest and imprisonment, denial of Plaintiff's right to a fair trial, negligent hiring, maintaining, supervising, disciplining and training of the officers, school bus operators, and school officials involved in this incident and police officers in general, and failure to supply competent, properly trained police officers, school bus operators and school officials in this incident and police officers, school bus operators, and school officials in general, Plaintiff A.M.G, a minor, suffered severe and serious permanent injuries including but not limited to a fractured nose, fractured facial bones, emotional and mental distress, pain and suffering, humiliation, embarrassment, indignity, the loss of liberty and civil rights, as well as psychological and emotional trauma.

28. Further, his mother, Plaintiff Delfina Garcia-Samano, has suffered severe emotional and mental distress, and out of pocket expenses for medical treatment and legal representation.

AS AND TO A FIRST CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF
EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP.
Negligence

29. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

30. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP. owed a duty of care to Plaintiff A.M.G.

31. Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP. and their agents, servants, and employees had actual and constructive knowledge of the assault on Plaintiff A.M.G. on October 12, 2023.

32. That on October 12, 2023, Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP. their agents, servants, and employees, did not stop the assault on Plaintiff A.M.G.

33. That the injuries suffered by Plaintiff A.M.G. was severe, pervasive, and objectively offensive.

34. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., their agents, servants, and employees, in failing to operate, control, manage, supervise, and maintain school bus #1147.

35. That the injuries suffered by Plaintiff A.M.G. were caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT

OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., their agents, servants, and employees, in failing to operate, control, manage, supervise, and maintain school bus #1147 in a safe, lawful, and proper fashion.

36. That the injuries suffered by Plaintiff A.M.G. were caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., their agents, servants, and employees, in failing to protect Plaintiff A.M.G., and students generally.

37. That the injuries suffered by Plaintiff A.M.G. were caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., their agents, servants, and employees, in failing to create a safe environment for Plaintiff A.M.G., and students generally.

38. That the injuries suffered by Plaintiff A.M.G. were caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP. their agents, servants, and employees, in failing to stop, prevent, and diffuse the assault and abuse from happening.

39. That the injuries suffered by Plaintiff A.M.G. were caused and contributed to by the negligence of Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT

PIONEER TRANSPORTATION CORP., their agents, servants, and employees, in failing to provide sufficient and proper protection for Plaintiff A.M.G.

40. That by reason of the foregoing, Plaintiff A.M.G., sustained severe personal injuries, conscious pain and suffering, and mental anguish. Plaintiff has been rendered sick, sore, lame, and disabled and upon information and belief some of these injuries are permanent. Plaintiff has incurred and will continue to incur hospital and medical expenses.

41. That by reason of the foregoing, Defendant PIONEER TRANSPORTATION CORP. is liable to Plaintiff A.M.G. for compensatory, punitive, and exemplary damages.

42. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., were negligent in that they failed to exercise reasonable care in the hiring, training, employment, retention, and/or supervision of its agents, servants, and/or employees, departments, agencies, and those acting under its directions, behest, and control.

43. That the subject incident and resultant injuries were caused solely and wholly, through and by reason of the willful negligence, carelessness, and recklessness of the Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and DEFENDANT PIONEER TRANSPORTATION CORP., their agents, servants, and/or employees, in the ownership, operation, management, supervision, maintenance, and control of the subject school bus and its employees and attendees therein.

44. That by reason of the foregoing, Plaintiff A.M.G. has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

45. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

46. The Defendant police officers, while acting in concert and within the scope of their authority, caused Plaintiff A.M.G. to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff A.M.G.'s right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
False Arrest and False Imprisonment

48. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

49. The acts and conduct of the Defendant police officers constitute false arrest and false imprisonment under the laws of the State of New York. Defendant police officers intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff A.M.G. did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendant police officers deprived Plaintiff A.M.G. of his rights under the laws of the State of New York and the United States Constitution.

51. THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Unlawful Stop, Question, and Frisk

53. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

54. The illegal approach, pursuit, stop, questioning, and frisk employed by Defendant police officers herein terminated Plaintiff A.M.G's freedom of movement through means intentionally applied.

55. The conduct of Defendant police officers in stopping, frisking, and searching Plaintiff A.M.G was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendant officers deprived Plaintiff A.M.G. of his rights under the laws of the State of New York.

57. Defendant THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Unlawful Search

59. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

60. The illegal approach, pursuit, stop and search employed by Defendant police officers herein terminated Plaintiff's freedom of movement through means intentionally applied.

61. Defendant police officers lacked probable cause to search Plaintiff.

62. As a direct and proximate result of such acts, defendant police officers deprived Plaintiff of his rights under the laws of the State of New York.

63. Defendant THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

65. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

66. The use of excessive force by defendants constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. Defendant THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Individual Defendant Officers' Violation of Plaintiffs' AC 8-8802 Rights

69. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

70. The acts of Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

71. The acts of Defendant Officers caused Plaintiff A.M.G. to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

72. The Defendant officers, while in uniform, unlawfully seized, used excessive force, falsely arrested and imprisoned Plaintiffs.

73. Defendant THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR AN EIGHTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Individual Defendant Officers' Failure to Intervene
in Violation of Plaintiffs' AC 8-8802 Rights

75. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

76. The acts of Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

77. Defendant officers had a duty to protect Plaintiff A.M.G. from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

78. The Defendant officers that did not physically touch Plaintiff A.M.G. but were present when other officers violated Plaintiff's AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff A.M.G., whose constitutional rights were being violated in their presence by other officers.

79. Defendant officers failed to intervene to prevent the unlawful conduct described therein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

80. Defendant THE CITY OF NEW YORK, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A NINTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
City-Employer's Liability for Defendant Officers' Violation of Plaintiffs' AC
8-8802 Rights

82. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

83. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

84. The CITY OF NEW YORK, as the employer of the covered individual Defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

85. The acts of Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

86. The acts of Defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

87. The Defendant officers, while in uniform, unlawfully, used excessive force, falsely arrested and imprisoned Plaintiffs.

88. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A TENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
City-Employer's Liability for Defendant Officers' Failure to Intervene
in Violation of Plaintiffs' AC 8-8802 Rights

89. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

90. Defendant officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

91. The CITY OF NEW YORK, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

92. The acts of Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

93. Defendant officers had a duty to protect Plaintiff A.M.G. from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

94. The Defendant officers that did not physically touch Plaintiff but were present when other officers violated Plaintiff’s AC 8-8802 rights against unreasonable search and seizure and excessive force, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

95. Defendant officers failed to intervene to prevent the unlawful conduct described therein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

96. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS

“JOHN” AND/OR “JANE” “DOES”, Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AN FOR AN ELEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, NYPD POLICE
OFFICERS “JOHN” AND/OR “JANE” “DOES”, and PIONEER
TRANSPORTATION CORP.
Negligent Infliction of Emotional Distress

97. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

98. By the actions described therein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff A.M.G. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff’s statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

99. As a direct and proximate result of such acts, defendant officers deprived Plaintiff A.M.G. of his rights under the laws of the State of New York.

100. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, NYPD POLICE OFFICERS “JOHN”

AND/OR "JANE" "DOES", and PIONEER TRANSPORTATION CORP., Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A TWELFTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Intentional Infliction of Emotional Distress

102. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein

103. By the actions described therein, Defendant officers engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiff A.M.G.

104. As a direct and proximate result of such acts, Defendant officers deprived Plaintiff of his rights under the laws of the State of New York.

105. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A THIRTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE

OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Failure to Intervene

107. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

108. The Defendant officers that did not physically touch Plaintiff A.M.G. but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff A.M.G., whose constitutional rights were being violated in their presence by other officers.

109. Defendant officers failed to intervene to prevent the unlawful conduct described therein.

110. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for their safety, and he was humiliated and subject to other physical constraints.

111. As a direct and proximate result of such acts, defendant officers deprived Plaintiff of his rights under the laws of the State of New York.

112. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of Defendants THE CITY OF NEW YORK, SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries

AS AND FOR A FOURTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, SCHOOL SAFETY
AGENT III MOHAMED LEMZAIZI Tax No. 359037, NYPD POLICE
OFFICER EDWARD DELRIO Shield No. 22519, and NYPD POLICE
OFFICERS "JOHN" AND/OR "JANE" "DOES"
Violation of Article I, § 12 of the New York State Constitution

114. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

115. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

116. As a direct and proximate result of Defendant officers deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff A.M.G. suffered physical, economic, and emotional injuries, as well as a deprivation of liberty.

117. As a result of the above tortious conduct, Plaintiffs was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

118. As a result of the above unconstitutional conduct, the CITY OF NEW YORK is liable for the conduct of the Defendant officers and any damages they caused under the doctrine of *respondeat superior*.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF
EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25
Gross Negligence

119. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

120. That Defendants owed a duty of care to Plaintiff A.M.G.

121. Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25 had actual and constructive knowledge of the assault on Plaintiff A.M.G. on October 12, 2023.

122. That on October 12, 2023, Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, did not stop the assault on Plaintiff A.M.G.

123. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was severe, pervasive, and objectively offensive.

124. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND

HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to operate, control, manage, supervise, and maintain the school premises.

125. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to operate, control, manage, supervise, and maintain the subject school in a safe, lawful, and proper fashion.

126. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to protect Plaintiff A.M.G., and students generally.

127. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to create a safe environment for Plaintiff A.M.G., and students generally.

128. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT

OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to stop, prevent, and diffuse the assaults and abuse from happening.

129. That the assault, battery, harassment, and intimidation suffered by Plaintiff A.M.G. was caused and contributed to by the willful and careless negligence, gross negligence, and recklessness by Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and employees, in failing to provide sufficient and proper protection for Plaintiff A.M.G.

130. That by reason of the foregoing, Plaintiff A.M.G., sustained severe personal injuries, conscious pain and suffering, and mental anguish. Plaintiff has been rendered sick, sore, lame, and disabled and upon information and belief some of these injuries are permanent. Plaintiff has incurred and will continue to incur hospital and medical expenses.

131. That by reason of the foregoing, Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25 are liable to Plaintiff A.M.G. for compensatory, punitive, and exemplary damages.

132. That the subject incident and resultant injuries were caused solely and wholly, through and by reason of the willful negligence, gross negligence, carelessness, and recklessness of the Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, their agents, servants, and/or employees, in the ownership, operation,

management, supervision, maintenance, and control of the subject school and its employees and attendees therein.

133. That this action falls within one or more of the exceptions set forth in CPLR § 1602, including but not limited to § 1602 (6) & (7).

134. That by reason of the foregoing, Plaintiff A.M.G. has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF
EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and
PIONEER TRANSPORTATION CORP.
Negligent Hiring, Retention, Training, and Supervision

135. The Plaintiff repeats, reiterates, and re-alleges the allegations contained in all of the paragraphs herein, as if separately set forth herein.

136. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. failed to take all reasonable steps to reduce the risk of injury and harm to Plaintiff A.M.G., a minor with autism, by failing to provide him with adequate supervision and failing to provide strategies to prevent assault, harassment, and intimidation.

137. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. owed a duty to exercise reasonable care in training and supervising their employees and agents.

138. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. failed to take all reasonable steps to train and supervise their employees and agents in the proper techniques for identifying bullying, assault, battery, harassment, and intimidation of students at school and on the school bus.

139. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, and SOUTH RICHMOND HIGH SCHOOL – IS/PS 25 failed to take all reasonable steps to train and supervise their employees and agents in the proper techniques for addressing bullying, assault, battery, harassment, and intimidation of students at school and on the school bus.

140. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. failed to take all reasonable steps to train and supervise their employees and agents in the proper techniques for rectifying bullying, assault, battery, harassment, and intimidation of students at school and on the school bus.

141. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. failed to take all reasonable steps to train and supervise their employees and agents in the proper techniques for reporting bullying, assault, battery, harassment, and intimidation of students at school and on the school bus.

142. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. were negligent, grossly negligent, careless, and reckless in that they failed to exercise reasonable care in the hiring, training, employment, retention, and/or supervision of its agents, servants, and/or employees, departments, agencies, and those acting under its directions, behest, and control.

143. That Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. were negligent, grossly negligent, careless, and reckless in that they failed to exercise reasonable care in the hiring, training, employment, retention, and/or supervision of its agents, servants, and/or employees, departments, agencies, and those acting under its directions, behest, and control, in failing to train same so as to enable them to provide proper supervision of students.

144. That by reason of the foregoing, Plaintiff A.M.G. sustained severe personal injuries, conscious pain and suffering, and mental anguish. Plaintiff has been rendered sick, sore, lame, and disabled and upon information and belief some of these injuries are permanent. Plaintiff has incurred and will continue to incur hospital and medical expenses.

145. That by reason of the foregoing, Defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP. are liable to Plaintiff A.M.G. for punitive and exemplary damages.

146. That the subject incident and resultant injuries were caused solely and wholly, through and by reason of the negligence, gross negligence, carelessness, and recklessness of

Defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION, NEW YORK CITY BOARD OF EDUCATION, SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, and PIONEER TRANSPORTATION CORP., their agents, servants, and/or employees, in the ownership, operation, management, supervision, maintenance, and control of the subject school and its employees and attendees therein.

147. The CITY OF NEW YORK and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

148. That this action falls within one or more of the exceptions set forth in CPLR § 1602, including but not limited to § 1602 (6) & (7).

149. That by reason of the foregoing, Plaintiff A.M.G. has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

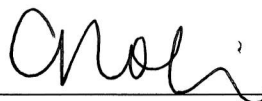
JURY DEMAND

133. Plaintiffs thereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit therein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 29, 2024



Caitlin Robin, Esq.
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Attorneys for Plaintiff
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TO:

THE CITY OF NEW YORK; Corporation Counsel, 100 Church Street, NY, NY 10007

SCHOOL SAFETY AGENT III MOHAMED LEMZAIZI Tax No. 359037, 123rd Precinct,
116 Main St, Staten Island, NY 10307

NYPD POLICE OFFICER EDWARD DELRIO Shield No. 22519, 123rd Precinct, 116
Main St, Staten Island, NY 10307

NYPD POLICE OFFICERS "JOHN" AND/OR "JANE" "DOES", 123rd Precinct, 116
Main St, Staten Island, NY 10307

NEW YORK CITY DEPARTMENT OF EDUCATION, 52 Chambers Street, Room 330,
B4, New York, NY 10007

NEW YORK CITY BOARD OF EDUCATION, 100 Church Street, NY, NY 10007

SOUTH RICHMOND HIGH SCHOOL – IS/PS 25, 6581 Hylan Blvd., Staten Island, NY
10309

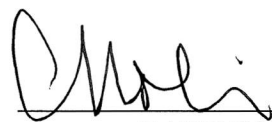
PIONEER TRANSPORTATION CORP., 2890 Arthur Kill Road, Staten Island, NY 10309

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

Dated: New York, New York
February 29, 2024



CAITLIN ROBIN, ESQ.